

		that the moving party must pay the costs allowed. <i>Krikorian Premiere Theatres, LLC v. Westminster Central, LLC</i> (2011) 193 Cal.App.4th 1075, 1084. <u>Discussion</u> Code of Civil Procedure section 998(a) provides that “[t]he costs allowed under Sections 1031 and 1032 shall be withheld or augmented as provided in this section.” Defendant argues that under section 998 Plaintiffs cannot recover costs incurred after the first 998 offer because they did not do better than that offer when they accepted the second 998 offer. Code of Civil Procedure section 998(c)(1) provides: If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs But case law addressing issues created when multiple 998 offers are served on the same party have found that as a matter of contract law, where the first 998 offer is not accepted, a second 998 offer extinguishes the first offer. <i>Wilson v. Wal-Mart Stores</i> (1999) 72 Cal.App.4th 382, 391 (“the legislative purpose of section 998 is generally better served by a bright line rule in which the parties know that any judgment will be measured against a single valid statutory offer”). <i>See also Varney Entertainment Group v. Avon Plastics</i> (2021) 61 Cal.App.5th 222, 235 (finding defendant's offer to enter into a stipulated judgment on breach of contract cause of action extinguished defendant's pending C.C.P. 998 offer that covered all causes of action). Defendant has provided no discussion or explanation why this authority would not apply here. Accordingly, the motion to strike or tax Plaintiff's costs is denied.
3.	2023-1363467 Manoussi vs. Sterling Infosystems, Inc.	Before the Court is Plaintiffs Azadeh Manoussi and Kaveh Vakilzadeh's Motion to allow them to withdraw from arbitration pursuant to CCP § 1281.97(b)(l) and for monetary sanctions. The Court, however, only sees the Notice of Motion filed as ROA 131. There does not appear to be a memorandum of points and authorities filed. Nor does the Court see the referenced Declaration of Tyler M. Vance. It appears that these documents were properly and timely served, as the opposition is made on the merits.

		Thus, the Court orders Plaintiffs to file the memorandum and declaration(s) that were timely served on Defendants <i>prior to the hearing on this Motion</i>.
4.	2026-1558154 BP Holdings RHO LLC vs. Duan	The Court grants Plaintiff BP Holdings RHO LLC's Motion pursuant to Code of Civil Procedure Section 425.16 subdivision (g) for leave to conduct discovery relevant to Plaintiff's oppositions to Defendant Sinan Duan's Special Motion to Strike (Anti-SLAPP) filed 5/14/26 and Defendant Crystal Chen's Motion to Expunge Lis Pendens (filed 4/23/26), as set forth below. <u>Request for Judicial Notice</u> Defendant's unopposed request to judicially notice his Petition for Dissolution of Marriage in the Orange County Superior Court, Case No. 20D001282, on February 14, 2020, filed by Duan, is granted. <u>Legal Standard</u> Unless the court orders otherwise for "good cause shown," all discovery proceedings shall be stayed upon filing of a notice of motion under CCP § 425.16. The stay remains in effect until notice of entry of order ruling on the motion. (CCP § 425.16(g); <i>see Britts v. Sup.Ct. (Berg & Berg Enterprises, LLC)</i> (2006) 145 Cal.App.4th 1112, 1129—court has no inherent power to rule on pending discovery motion or to allow discovery while anti-SLAPP motion pending, absent a noticed motion under CCP § 425.16(g).) Because a CCP § 425.16 motion may be made within 60 days after service of the complaint (and must be heard within 30 days thereafter), plaintiff may need additional discovery to oppose defendant's motion. If so, it must move for an order allowing such discovery (and, if necessary, a continuance of the hearing). It cannot merely oppose the motion for lack of opportunity to obtain such information. (<i>Lafayette Morehouse, Inc. v. Chronicle Publishing Co.</i> (1995) 37 Cal.App.4th 855, 867; <i>Robertson v. Rodriguez</i> (1995) 36 Cal.App.4th 347, 357.) "Good cause" is required for discovery while an anti-SLAPP motion is pending. (CCP § 425.16(g).) To satisfy this requirement, plaintiff must explain what additional facts it expects to uncover and why the discovery is necessary to carry its burden on the anti-SLAPP motion. "Conclusory comments by counsel that the evidence requested ... would somehow 'fill' unspecified evidentiary gaps was not a sufficient explanation." (<i>Six4Three, LLC v. Facebook, Inc.</i> (2025) 109 Cal.App.5th 635, 659.)